CANLINK TRADING (PRIVATE) LIMITED

Versus

POWERTEL COMMUNICATIONS (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE

**V NDLOVU J**

HARARE; 17 March 2026, 26 March 2026

***Court Application***

*Mr. T Mpofu,* for the applicant
*Miss B Mahuri,* for the respondent

**WRITTEN EX-TEMPORAE REASONS**

This matter concerns an application brought by the applicant, Canlink Trading (Pvt) Ltd, seeking registration of an arbitral award in terms of Article 35(1) of the Arbitration Act [Chapter 7:15]. The arbitral award was previously challenged by the respondent, Powertel Communications (Pvt) Ltd, through an application for setting aside the award.

Before the hearing of this matter, there was an application for setting aside the arbitral award, which was pending before Deme J. However, on the hearing date, the application for setting aside the arbitral award had been determined, and it was dismissed by Deme J.

*Ms B Mahuri,* for the Respondent, contended that they have appealed against the dismissal of the application for setting aside the award. She argued that since an appeal has been lodged, the matter should be suspended until the Supreme Court determines the appeal. She argued that recognition of the award at this stage may result in contradictory judgments if the Supreme Court were to find the award contrary to public policy.

*Mr. T Mpofu*, for the Applicant, argued that once an arbitral award is made, it is enforceable unless set aside. He relied on the authority of Gwanda Rural District Council v Botha SC 174/20, emphasising that registration is a formal process and the only defences

available relate to non-compliance with statutory formalities. He submitted that the requirements for registration had been satisfied, and the pending appeal does not constitute a valid defence.

He submitted that this is a formal application because registration of an award is an administrative process. He stated that Article 35 of the Arbitration Act provides for recognition and enforcement of arbitral awards. Article 36(2) permits the court to adjourn its decision if an application for setting aside is pending. However, once such an application has been dismissed, the award remains extant unless overturned on appeal. Although counsel for the Respondent submitted that they had filed an appeal at the Supreme Court, at the time of the hearing on this application, no appeal had been filed.

In the case of *CF Holdings t/a Farm & City v Andrew Machaya* SC 37/23 p. 6, the Supreme Court articulated specific requirements that must be satisfied for an application of this nature. The criteria necessary for the High Court or Magistrates Court to grant an application for the registration of an arbitral award are as follows,

"The requirements that must be satisfied before the High Court or the Magistrates Court grants an application for registration of an award are:

a. A competent arbitrator must have granted the award.
b. The award must sound in money.
c. The award is still extant and has not been set aside on review or appeal.
d. The litigants are the parties to the award.
e. The award must be certified as an award of the arbitrator."

The application for setting aside the award has already been dismissed by DEME J. Consequently, the award remains valid and enforceable. Mr. Mpofu submitted that the respondent's reliance on the pending appeal does not constitute a bar to registration. An appeal does not suspend the enforceability of an arbitral award unless specifically ordered.

The requirements for registration have been met, the arbitrator was competent, the award sounds in money, the award has not been set aside, the parties before the court are the same as those to the award, and the award has been duly certified.

Accordingly, the application for the award is granted in terms of the draft order.

**NDLOVU J.**

Mawere Sibanda Commercial Lawyers, the applicant's legal practitioners
Muvingi Mugadza, the respondent's legal practitioners